# D. Consumer Commission complaint — preparation draft

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PREPARATION DRAFT ONLY. Consumer Commissions have their own format, affidavit and document requirements, and complaints are filed through e-Jagriti (e-jagriti.gov.in). Use this to organise your facts; check the portal's requirements, and consider asking an advocate or a recognised consumer association to review it before filing.

## BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, Pune

Consumer Complaint No. _____ of 20___ (to be assigned)

IN THE MATTER OF:

Rahul Verma, [ADD: full address], Pune — Complainant

VERSUS

1. Gupta Mobile World, [MISSING: seller's registered address (from the invoice / platform seller page)] — Opposite Party No. 1
2. ShopNest marketplace, [MISSING: platform's registered office address] — Opposite Party No. 2

COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT, 2019

## 1. The Complainant is a consumer

The Complainant bought the goods for consideration through an online transaction for personal use and is a 'consumer' under Section 2(7) of the Consumer Protection Act, 2019.

## 2. Facts of the case

1. On 10 October 2026, I placed an order for mobile phone on ShopNest marketplace, sold by Gupta Mobile World (Order ID: SN-4471-2290) and paid ₹18,000.
2. The product was delivered on 14 October 2026 and was found to be damaged. In my words: “The product arrived damaged. The screen was cracked across the middle when I opened the box on the day of delivery.”
3. I raised the matter with the seller/platform on 17 October 2026 (approx.) (reference: TKT-88123). What I did: “I requested a refund three weeks ago, but the seller keeps postponing it.”
4. As of 7 November 2026, the matter remains unresolved and I have not received the refund of ₹18,000 I asked for.

## 3. Grounds

1. The goods supplied suffer from a defect within the meaning of Section 2(10) of the Consumer Protection Act, 2019, which is a ground of complaint under Section 2(6)(ii).
2. Under Rule 6(3) of the Consumer Protection (E-Commerce) Rules, 2020, a seller on a marketplace shall not refuse to take back goods or refund the consideration where the goods are defective. Where the platform itself is the seller, Rule 7(4) imposes the same duty.
3. Under Rule 4(10) of the E-Commerce Rules, payments towards accepted refund requests must be made within a reasonable period of time.

## 4. Cause of action

The cause of action arose on 10 October 2026 when the order was placed, and further on 14 October 2026 and on each date the Opposite Parties failed to resolve the complaint, and it is continuing.

## 5. Jurisdiction

Pecuniary: the value of goods paid as consideration is ₹18,000, which does not exceed ₹50 lakh; this Commission has jurisdiction under Rule 3 of the Consumer Protection (Jurisdiction of the District Commission, the State Commission and the National Commission) Rules, 2021.

Territorial: the Complainant resides / personally works for gain at Pune, within the limits of this Commission (Section 34(2)(d) of the Act).

## 6. Limitation

The complaint is filed within two years of the cause of action, as required by Section 69 of the Consumer Protection Act, 2019.

## 7. Prayer

The Complainant respectfully prays that the Hon'ble Commission may direct the Opposite Parties, jointly and/or severally, to:

1. Refund the full amount of ₹18,000 paid and take back the product at their own cost.
2. Pay interest on the amount refunded and the costs of this complaint, as the Hon'ble Commission may deem fit.
3. Grant any other relief the Hon'ble Commission considers appropriate.

## 8. List of documents

- Annexure A-1: Invoice / bill
- Annexure A-2: Photographs of the product / damage
- Annexure A-3: Unboxing / product video
- Annexure A-4: Chat transcripts / messages with customer care
- Annexure A-5: Complaint / ticket reference number

## 9. Verification

I, Rahul Verma, the Complainant, state that the facts above are true to my knowledge and belief. [ADD: place, date and signature; affidavit as required by the Commission]

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